

5. S-PR-0012485 In Re the Estate of Entrekin, James Harrison

Clarification is needed as to request for reimbursement to personal representative of advances to the estate: itemized advances include multiple entries for mileage with no explanation as to miles traveled, purpose of travel, or mileage rate applied.

It is recommended the request for extraordinary attorney fees be denied. Counsel's agreement with personal representative for fees in excess of those provided by statute is void as a matter of law and cannot be the basis for any attorney fees. Prob.C. § 10813. Services relating to recovery of misappropriated property appears to include only the 2012 Hyundai, appraised at \$3,500, and miscellaneous furniture, appraised at \$500. Incurring approximately \$7,000 in extraordinary fees is not justifiable to recover only \$4,000 in value to the estate. No will was offered for probate at any time. The extraordinary fees request is not supported by any showing that conforms to the requirements of C.R.C. 7.702–7.703.

Account omits required beginning property-on-hand schedule. Final property-on-hand schedule omits the 2012 Hyundai without explanation (no disposition of the vehicle is shown in the account or report).

6. S-PR-0012548 In Re the Estate of Cronin, Steven Timothy

Missing notice of hearing for petition for final distribution. Missing service of notice of hearing.

Clarification / revision is needed: the petition alleges an I&A was filed showing assets of \$576,360. The I&A filed August 8, 2025, shows assets of \$628,141, directly contrary to the allegations of the petition. The August 8, 2025, I&A impermissibly includes personal representative appraisals of real property and vehicles. Probate referee is required to appraise all non-cash assets. I&A includes facially erroneous appraisal of decedent's checking account (it is extremely unlikely the account held exactly \$22,000.00 as of the date of death of decedent).

Missing waiver of estate account by personal representative of the estate of Patrick Cronin. Petitioners' contention that Patrick Cronin may have intended to disclaim his interest in the estate does not constitute a disclaimer. His beneficial interest vested upon decedent's death. Prob.C. § 7000. Waiver of account is required from a personal representative of his estate, or account is needed.

Petitioners' response is needed: personal representatives admit preliminary distributions of \$25,000 to each of 5 heirs. A notice petition and court order were required to authorize a preliminary distribution; no such order was granted. See, e.g., Prob.C. § 11623(a)(1). Note: no preliminary distribution was made to the estate of Patrick Cronin.

Proposed distribution (1/5 each to 5 surviving siblings) is contrary to law. Patrick Cronin's interest in the estate vest as of decedent's death and distribution to his estate or other successors is required. Prob.C. §§ 7000 & 11801 et seq. As noted above, petitioners' contention that Patrick Cronin may have intended to disclaim his interest in the estate does

not constitute a disclaimer. Petitioners' contention that Patrick's share will pass to "the remaining four (4) siblings" is irreconcilable with the allegations that decedent was survived by 6 siblings, only one of whom post-deceased.

7. S-PR-0012581 In Re the Estate of Walling, Jay Brian

Petition for final distribution

Appearance is required for hearing on petition for final distribution.

Missing notice of hearing. Missing service of notice of hearing.

Petition for final distribution is substantially overdue without justification. The estate real property sold in September 2024 and the report and account do not show any substantive administration thereafter. The first report or petition for final distribution was due July 2025. Prob.C. § 12200(a) (letters were issued July 2024). Court determination is needed as to whether personal representative and / or attorney fees should be reduced under Prob.C. § 12205.

The estate is not in a condition to be closed. Administrator acknowledges the claim of Ryan Walling remains outstanding, never having been approved or rejected. If rejected in any part, claimant will have the statutory period to bring an action against the estate. In both this petition and the companion petition, administrator proposes rejecting the claim in part. Additional calendar notes concerning the Ryan Walling creditor claim are provided with the petition for instructions, below.

Proposed administrator and attorney fees were miscalculated in two ways. First, the estate inventory and appraisal impermissibly included surviving spouse's 1/2 community interest in certain assets. Only decedent's 1/2 community interest is part of this estate and can be administered herein. The I&A failed to exclude survivor's 1/2 from the I&A valuation total, and petitioner used the inflated total for both fees calculations and for account carry values. Second, the fee base is to include additional property received, gains on sale, and receipts. See Prob.C. §§ 10800(b) & 10810(b); C.R.C. 7.705. Recalculation of personal representative and attorney fees or waiver of unclaimed fees is needed.

Notes concerning the request to surcharge Craig Walling's distributive share are provided with the petition for instructions, below.

For the benefit of counsel for administrator, it is noted that R&T § 19513, referred to in ¶ 12 of the petition, was repealed more than 12 years ago (effective January 1, 2014).